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中华人民共和国国务院令

第 625 号

《国内水路运输管理条例》已经2012年9月26日国务院第218次常务会议通过，现予公布，自2013年1月1日起施行。

总 理 温家宝

2012年10月13日

国内水路运输管理条例

第一章 总 则

第一条 为了规范国内水路运输经营行为，维护国内水路运输市场秩序，保障国内水路运输安全，促进国内水路运输业健康发展，制定本条例。

第二条 经营国内水路运输以及水路运输辅助业务，应当遵守本条例。

本条例所称国内水路运输（以下简称水路运输），是指始发港、挂靠港和目的港均在中华人民共和国管辖的通航水域内的经营性旅客运输和货物运输。

本条例所称水路运输辅助业务，是指直接为水路运输提供服务的船舶管理、船舶代理、水路旅客运输代理和水路货物运输代理等经营活动。

第三条 国家鼓励和保护水路运输市场的公平竞争，禁止垄断和不正当竞争行为。

国家运用经济、技术政策等措施，支持和鼓励水路运输经营者实行规模化、集约化经营，促进水路运输行业结构调整；支持和鼓励水路运输经营者采用先进适用的水路运输设备和技术，保障运输安全，促进节约能源，减少污染物排放。

国家保护水路运输经营者、旅客和货主的合法权益。

第四条 国务院交通运输主管部门主管全国水路运输管理工作。

县级以上地方人民政府交通运输主管部门主管本行政区域的水路运输管理工作。县级以上地方人民政府负责水路运输管理的部门或者机构（以下统称负责水路运输管理的部门）承担本条例规定的水路运输管理工作。

第五条 经营水路运输及其辅助业务，应当遵守法律、法规，诚实守信。

国务院交通运输主管部门和负责水路运输管理的部门应当依法对水路运输市场实施监督管理，对水路运输及其辅助业务的违法经营活动实施处罚，并建立经营者诚信管理制度，及时向社会公告监督检查情况。

第二章 水路运输经营者

第六条 申请经营水路运输业务，除本条例第七条规定的情形外，申请人应当符合下列条件：

- （一）具备企业法人条件；
- （二）有符合本条例第十三条规定的船舶，并且自有船舶运力符合国务院交通运输主管部门的规定；
- （三）有明确的经营范围，其中申请经营水路旅客班轮运输业务的，还应当有可行的航线营运计划；
- （四）有与其申请的经营范围和船舶运力相适应的海务、机务管理人员；
- （五）与其直接订立劳动合同的高级船员占全部船员的比例符合国务院交通运输主管部门的规定；
- （六）有健全的安全生产管理制度；
- （七）法律、行政法规规定的其他条件。

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第七条 个人可以申请经营内河普通货物运输业务。

申请经营内河普通货物运输业务的个人，应当有符合本条例第十三条规定且船舶吨位不超过国务院交通运输主管部门规定的自有船舶，并应当符合本条例第六条第六项、第七项规定的条件。

第八条 经营水路运输业务，应当按照国务院交通运输主管部门的规定，经国务院交通运输主管部门或者设区的市级以上地方人民政府负责水路运输管理的部门批准。

申请经营水路运输业务，应当向前款规定的负责审批的部门提交申请书和证明申请人符合本条例第六条或者第七条规定条件的相关材料。

负责审批的部门应当自受理申请之日起30个工作日内审查完毕，作出准予许可或者不予许可的决定。予以许可的，发给水路运输业务经营许可证件，并为申请人投入运营的船舶配发船舶营运证件；不予许可的，应当书面通知申请人并说明理由。

取得水路运输业务经营许可的，持水路运输业务经营许可证件依法向工商行政管理机关办理登记后，方可从事水路运输经营活动。

第九条 各级交通运输主管部门应当做好水路运输市场统计和分析工作，定期向社会公布水路运输市场运力供需状况。

第十条 为保障水路运输安全，维护水路运输市场的公平竞争秩序，国务院交通运输主管部门可以根据水路运输市场监测情况，决定在特定的旅客班轮运输和散装液体危险货物运输航线、水域暂停新增运力许可。

采取前款规定的运力调控措施，应当符合公开、公平、公正的原则，在开始实施的60日前向社会公告，说明采取措施的理由以及采取措施的范围、期限等事项。

★ 第十一条 外国的企业、其他经济组织和个人不得经营水路运输业务，也不得以租用中国籍船舶或者舱位等方式变相经营水路运输业务。

香港特别行政区、澳门特别行政区和台湾地区的企业、其他经济组织以及个人参照适用前款规定，国务院另有规定的除外。

第十二条 依照本条例取得许可的水路运输经营者终止经营的，应当自终止经营之日起15个工作日内向原许可机关办理注销许可手续，交回水路运输业务经营许可证件。

第十三条 水路运输经营者投入运营的船舶应当符合下列条件：

- （一）与经营者的经营范围相适应；
- （二）取得有效的船舶登记证书和检验证书；
- （三）符合国务院交通运输主管部门关于船型技术标准和船龄的要求；
- （四）法律、行政法规规定的其他条件。

第十四条 水路运输经营者新增船舶投入运营的，应当凭水路运输业务经营许可证件、船舶登记证书和检验证书向国务院交通运输主管部门或者设区的市级以上地方人民政府负责水路运输管理的部门领取船舶营运证件。

从事水路运输经营的船舶应当随船携带船舶营运证件。

海事管理机构办理船舶进出港签证，应当检查船舶的营运证件。对不能提供有效的船舶营运证件的，不得为其办理签证，并应当同时通知港口所在地人民政府负责水路运输管理的部门。港口所在地人民政府负责水路运输管理的部门收到上述通知后，应当在24小时内作出处理并将处理情况书面通知有关海事管理机构。

第十五条 国家根据保障运输安全、保护水环境、节约能源、提高航道和通航设施利用效率的需求，制定并实施新的船型技术标准时，对正在使用的不符合新标准但符合原有标准且未达到规定报废船龄的船舶，可以采取资金补贴等措施，引导、鼓励水路运输经营者进行更新、改造；需要强制提前报废的，应当对船舶所有人给予补偿。具体办法由国务院交通运输主管部门会同国务院财政部门制定。

第十六条 水路运输经营者不得使用外国籍船舶经营水路运输业务。但是，在国内没有能够满足所申请运输要求的中国籍船舶，并且船舶停靠的港口或者水域为对外开放的港口或者水域的情况下，经国务院交通运输主管部门许可，水路运输经营者可以在国务院交通运输主管部门规定的期限或者航次内，临时使用外国籍船舶运输。

在香港特别行政区、澳门特别行政区、台湾地区进行船舶登记的船舶，参照适用本条例关于外国籍船舶的规定，国务院另有规定的除外。

第三章 水路运输经营活动

第十七条 水路运输经营者应当在依法取得许可的经营范围内从事水路运输经营。

第十八条 水路运输经营者应当使用符合本条例规定条件、配备合格船员的船舶，并保证船舶处于适航状态。

水路运输经营者应当按照船舶核定载客定额或者载重量载运旅客、货物，不得超载或者使用货船载运旅客。

第十九条 水路运输经营者应当依照法律、行政法规和国务院交通运输主管部门关于水路旅客、货物运输的规定、质量标

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准以及合同的约定，为旅客、货主提供安全、便捷、优质的服务，保证旅客、货物运输安全。

水路旅客运输业务经营者应当为其客运船舶投保承运人责任保险或者取得相应的财务担保。

第二十条 水路运输经营者运输危险货物，应当遵守法律、行政法规以及国务院交通运输主管部门关于危险货物运输的规定，使用依法取得危险货物适装证书的船舶，按照规定的安全技术规范进行配载和运输，保证运输安全。

第二十一条 旅客班轮运输业务经营者应当自取得班轮航线经营许可之日起60日内开航，并在开航15日前公布所使用的船舶、班期、班次、运价等信息。

旅客班轮运输应当按照公布的班期、班次运行；变更班期、班次、运价的，应当在15日前向社会公布；停止经营部分或者全部班轮航线的，应当在30日前向社会公布并报原许可机关备案。

第二十二条 货物班轮运输业务经营者应当在班轮航线开航的7日前，公布所使用的船舶以及班期、班次和运价。

货物班轮运输应当按照公布的班期、班次运行；变更班期、班次、运价或者停止经营部分或者全部班轮航线的，应当在7日前向社会公布。

第二十三条 水路运输经营者应当依照法律、行政法规和国家有关规定，优先运送处置突发事件所需的物资、设备、工具、应急救援人员和受到突发事件危害的人员，重点保障紧急、重要的军事运输。

出现关系国计民生的紧急运输需求时，国务院交通运输主管部门按照国务院的部署，可以要求水路运输经营者优先运输需要紧急运输的物资。水路运输经营者应当按照要求及时运输。

第二十四条 水路运输经营者应当按照统计法律、行政法规的规定报送统计信息。

第四章 水路运输辅助业务

第二十五条 运输船舶的所有人、经营人可以委托船舶管理业务经营者为其提供船舶海务、机务管理等服务。

第二十六条 申请经营船舶管理业务，申请人应当符合下列条件：

- （一）具备企业法人条件；
- （二）有健全的安全生产管理制度；
- （三）有与其申请管理的船舶运力相适应的海务、机务管理人员；
- （四）法律、行政法规规定的其他条件。

第二十七条 经营船舶管理业务，应当经设区的市级以上地方人民政府负责水路运输管理的部门批准。

申请经营船舶管理业务，应当向前款规定的部门提交申请书和证明申请人符合本条例第二十六条规定条件的相关材料。

受理申请的部门应当自受理申请之日起30个工作日内审查完毕，作出准予许可或者不予许可的决定。予以许可的，发给船舶管理业务经营许可证件，并向国务院交通运输主管部门备案；不予许可的，应当书面通知申请人并说明理由。

取得船舶管理业务经营许可的，持船舶管理业务经营许可证件依法向工商行政管理机关办理登记后，方可经营船舶管理业务。

第二十八条 船舶管理业务经营者接受委托提供船舶管理服务，应当与委托人订立书面合同，并将合同报所在地海事管理机构备案。

船舶管理业务经营者应当按照国家有关规定和合同约定履行有关船舶安全和防止污染的管理义务。

第二十九条 水路运输经营者可以委托船舶代理、水路旅客运输代理、水路货物运输代理业务的经营者，代办船舶进出港手续等港口业务，代为签订运输合同，代办旅客、货物承揽业务以及其他水路运输代理业务。

第三十条 船舶代理、水路旅客运输代理业务的经营者应当自企业设立登记之日起15个工作日内，向所在地设区的市级人民政府负责水路运输管理的部门备案。

第三十一条 船舶代理、水路旅客运输代理、水路货物运输代理业务的经营者接受委托提供代理服务，应当与委托人订立书面合同，按照国家有关规定和合同约定办理代理业务，不得强行代理，不得为未依法取得水路运输业务经营许可或者超越许可范围的经营者办理代理业务。

第三十二条 本条例第十二条、第十七条的规定适用于船舶管理业务经营者。本条例第十一条、第二十四条的规定适用于船舶管理、船舶代理、水路旅客运输代理和水路货物运输代理业务经营活动。

国务院交通运输主管部门应当依照本条例的规定制定水路运输辅助业务的具体管理办法。

第五章 法律责任

第三十三条 未经许可擅自经营或者超越许可范围经营水路运输业务或者国内船舶管理业务的，由负责水路运输管理的部门责令停止经营，没收违法所得，并处违法所得1倍以上5倍以下的罚款；没有违法所得或者违法所得不足3万元的，处3万元以上15万元以下的罚款。

第三十四条 水路运输经营者使用未取得船舶营运证件的船舶从事水路运输的，由负责水路运输管理的部门责令该船停止

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经营，没收违法所得，并处违法所得1倍以上5倍以下的罚款；没有违法所得或者违法所得不足2万元的，处2万元以上10万元以下的罚款。

从事水路运输经营的船舶未随船携带船舶营运证件的，责令改正，可以处1000元以下的罚款。



第三十五条 水路运输经营者未经国务院交通运输主管部门许可或者超越许可范围使用外国籍船舶经营水路运输业务，或者外国的企业、其他经济组织和个人经营或者以租用中国籍船舶或者舱位等方式变相经营水路运输业务的，由负责水路运输管理的部门责令停止经营，没收违法所得，并处违法所得1倍以上5倍以下的罚款；没有违法所得或者违法所得不足20万元的，处20万元以上100万元以下的罚款。

第三十六条 以欺骗或者贿赂等不正当手段取得本条例规定的行政许可的，由原许可机关撤销许可，处2万元以上20万元以下的罚款；有违法所得的，没收违法所得；国务院交通运输主管部门或者负责水路运输管理的部门自撤销许可之日起3年内不予受理其对该项许可的申请。

第三十七条 出租、出借、倒卖本条例规定的行政许可证件或者以其他方式非法转让本条例规定的行政许可的，由负责水路运输管理的部门责令改正，没收违法所得，并处违法所得1倍以上5倍以下的罚款；没有违法所得或者违法所得不足3万元的，处3万元以上15万元以下的罚款；情节严重的，由原许可机关吊销相应的许可证件。

伪造、变造、涂改本条例规定的行政许可证件的，由负责水路运输管理的部门没收伪造、变造、涂改的许可证件，处3万元以上15万元以下的罚款；有违法所得的，没收违法所得。

第三十八条 水路运输经营者有下列情形之一的，由海事管理机构依法予以处罚：

- （一）未按照规定配备船员或者未使船舶处于适航状态；
- （二）超越船舶核定载客定额或者核定载重量载运旅客或者货物；
- （三）使用货船载运旅客；
- （四）使用未取得危险货物适装证书的船舶运输危险货物。

第三十九条 水路旅客运输业务经营者未为其经营的客运船舶投保承运人责任保险或者取得相应的财务担保的，由负责水路运输管理的部门责令限期改正，处2万元以上10万元以下的罚款；逾期不改正的，由原许可机关吊销该客运船舶的船舶营运许可证件。

第四十条 班轮运输业务经营者未提前向社会公布所使用的船舶、班期、班次和运价或者其变更信息的，由负责水路运输管理的部门责令改正，处2000元以上2万元以下的罚款。

第四十一条 旅客班轮运输业务经营者自取得班轮航线经营许可之日起60日内未开航的，由负责水路运输管理的部门责令改正；拒不改正的，由原许可机关撤销该项经营许可。

第四十二条 水路运输、船舶管理业务经营者取得许可后，不再具备本条例规定的许可条件的，由负责水路运输管理的部门责令限期整改；在规定期限内整改仍不合格的，由原许可机关撤销其经营许可。

第四十三条 负责水路运输管理的国家工作人员在水路运输管理活动中滥用职权、玩忽职守、徇私舞弊，不依法履行职责的，依法给予处分。

第四十四条 违反本条例规定，构成违反治安管理行为的，依法给予治安管理处罚；构成犯罪的，依法追究刑事责任。

第六章 附 则

第四十五条 载客12人以下的客运船舶以及乡、镇客运渡船运输的管理办法，由省、自治区、直辖市人民政府另行制定。

第四十六条 本条例自2013年1月1日起施行。1987年5月12日国务院发布的《中华人民共和国水路运输管理条例》同时废止。

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WJD-004

State Council of the People 's Republic of China

Decree No. 625

The Regulations on the Administration of Domestic Waterways Transportation has been approved by the State Council's 218th executive meeting on September 26, 2012 and is hereby promulgated and shall enter into force as of January 1, 2013.

Premier Wen Jiabao

October 13, 2012

Regulations on the Administration of Domestic Waterways

Chapter 1 General Provisions

Article 1 These Regulations are formulated in order to standardize the domestic waterway transport business, maintain the order of the domestic water transport market, guarantee the safety of domestic water transport and promote the healthy development of the domestic water transport industry.

Article 2 The domestic water transport and water transport auxiliary business shall comply with these Regulations.

The term "domestic waterway transport" (hereinafter referred to as "waterway transport") referred to in these Regulations refers to the operation of passenger transport and cargo transportation within the navigable waters under the jurisdiction of the People's Republic of China.

The term "waterway auxiliary service" as mentioned in these Regulations refers to the business activities of ship management, ship agency, waterway passenger transport agent and waterway freight forwarding agent which directly provide services for waterway transportation.

Article 3 The State encourages and protects the fair competition in the water transport market and prohibits monopolies and acts of unfair competition

To support and encourage waterway transport operators to implement large-scale and intensive management to promote the structural adjustment of the water transport industry; to support and encourage water transport operators to adopt advanced and suitable waterway transportation equipment and technology to ensure the transport Safety, promote energy conservation and reduce pollutant emissions.

The State protects the lawful rights and interests of waterway operators, passengers and shippers.

Article 4 The competent department of transportation under the State Council shall be in charge of the national waterway transportation management work.

The competent department of transportation of the local people's government at or above the

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county level shall be in charge of the management of water transport in their respective administrative areas. The departments or agencies that are responsible for the management of water transport in the local people's governments at or above the county level (hereinafter collectively referred to as the departments responsible for the management of water transport) shall bear the management of water transport under these Regulations.

Article 5 To operate waterway transport and its auxiliary business, it shall abide by laws and regulations and be honest and trustworthy.

The department in charge of transportation under the State Council and the department in charge of waterway transportation management shall, in accordance with law, implement supervision and administration of the waterway transport market according to law, impose penalties on illegal activities of waterway transport and its auxiliary business, and establish the management system of the integrity of the operators, Happening.

Chapter II Waterway Operators

Article 6 In applying for the operation of the waterway transport business, the applicant shall meet the following conditions in addition to the circumstances prescribed in Article 7 of these Regulations:

- (A) with the legal conditions of enterprises;
- (2) having a ship complying with the provisions of Article 13 of these Regulations, and the capacity of its own ship is in accordance with the provisions of the competent department of transportation of the State Council;
- (C) there is a clear scope of business, which apply for operating water passenger liner shipping business, should also have a viable route operation plan;
- (4) having the business scope and the ship's capacity to suit the application of the maritime and maintenance personnel;
- (5) The proportion of all the crew members who have entered into labor contracts directly with them shall be in accordance with the provisions of the competent department of communications under the State Council;
- (6) having a sound safety management system;
- (7) other conditions prescribed by laws and administrative regulations.

Article 7 An individual may apply for the operation of a general cargo transport business in the river.

The individual who applies for the operation of the general cargo transportation business of the river should have its own ship in accordance with the provisions of Article 13 of these Regulations and whose tonnage does not exceed the provisions of the competent department of transportation under the State Council and shall comply with the provisions of Article 6, Paragraph 6, Item.

Article 8 The business of running water transport shall be approved by the department in charge of transportation under the State Council or the local people's government at or above the

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municipal level in charge of water transport management in accordance with the provisions of the competent department of transportation under the State Council.

Apply for the operation of water transport business, should be required to the provisions of the paragraph approved by the department to submit the application and prove that the applicant in line with the provisions of Article VI or Article VII of the relevant materials.

The department responsible for the examination and approval shall, within 30 working days from the date of acceptance of the application, make a decision to grant permission or disapproval. If the license is granted, the applicant shall notify the applicant in writing and explain the reasons for the issuance of the ship's operating certificate for the ship that has been put into operation for the applicant.

If the business license of the waterway transportation business is obtained, the business license of the waterway transportation business shall be registered with the administrative department for industry and commerce according to law before engaging in the waterway transportation business activities.

Article 9 The competent departments of transportation at all levels shall do a good job in the statistics and investigation and analysis of the waterway transportation market and regularly publish to the public the supply and demand situation of the water transport market.

Article 10 In order to ensure the safety of water transport and maintain the order of fair competition in the waterway transportation market, the competent department of transportation under the State Council may, in accordance with the monitoring of the waterway transportation market, decide on the transportation of special passenger liner and the transport of dangerous goods in bulk Capacity permission.

The measures for carrying out the capacity control measures prescribed in the preceding paragraph shall be in accordance with the principles of openness, fairness and impartiality, and shall inform the public about 60 days before the commencement of the operation and explain the reasons for taking measures and the scope and duration of the measures taken.



Article 11 Foreign enterprises, other economic organizations and individuals shall not engage in waterway transportation business, nor shall they disguise the operation of water transport business in such a manner as to hire Chinese nationality ships or spaces.

The Hong Kong Special Administrative Region, the Macao Special Administrative Region and the Taiwan region, other economic organizations and individuals with reference to the provisions of the preceding paragraph, unless otherwise provided by the State Council.

Article 12 Where a waterway transport operator who has obtained permission under this Ordinance ceases to operate, it shall, within 15 working days from the date of termination of operation, go through the formalities of cancellation of the license with the original licensing authority and return the business license of the waterway transport business.

Article 13 Ships carrying into operation by waterway transport operators shall meet the following conditions:

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- (A) adapt to the business scope of the operator;
- (2) to obtain a valid certificate of registration and inspection of the ship;
- (3) meeting the requirements of the competent department of transportation under the State Council on the technical standards and age of the ship;
- (4) other conditions prescribed by laws and administrative regulations

Article 14 Where a new operator of a waterway transport operator is put into operation, he shall, in accordance with the waterway transport business license, the ship registration certificate and the inspection certificate, be responsible to the competent department of transportation under the State Council or the local people's government at or above the municipal level for water transport management Of the department to receive the ship operating documents. Ships engaged in the operation of water transport shall carry the ship's operating documents with the ship.

The maritime administrative organ shall handle the ship 's entry and exit visa and shall inspect the operating documents of the ship. If the ship can not provide valid operating documents, it shall not apply for a visa, and shall also notify the port where the people's government is responsible for water transport management department. The department of the port where the people's government is responsible for the management of waterway transport shall, after receiving the above-mentioned notice, make a notice within 24 hours and notify the relevant maritime administrative authority in writing of the handling.

Article 15 The State shall, in accordance with the requirements for the protection of transport safety, the protection of the water environment, the conservation of energy and the improvement of the utilization efficiency of waterways and navigation facilities, the development and implementation of new ship technical standards, Those who fail to meet the stipulated retirement age may take measures such as subsidizing funds to guide and encourage the water transport operators to carry out renovation and renovation. If they need to be forced to retire in advance, they shall compensate the shipowners. The specific measures shall be formulated by the competent department of transportation of the State Council in conjunction with the financial department of the State Council.

Article 16 Waterway transport operators shall not use foreign vessels to operate waterway transportation business. However, in the case of a Chinese vessel which is unable to meet the requirements for transport in China and the port or water to which the ship is docked is a port or water area which is open to the public, the water transport operator may, through the competent department of transportation under the State Council, Transportation department within the time limit or voyage, the temporary use of foreign ship transport.

In the case of a ship registered in the Hong Kong Special Administrative Region, the Macao Special Administrative Region or the Taiwan Region, the provisions of this Ordinance relating to foreign ships shall be made, unless otherwise provided by the State Council.

Chapter III Waterway transport business activities

Article 17 A waterway transport operator shall engage in the operation of water transport within

the scope of business permitted by law.

Article 18 A waterway transport operator shall use a ship that meets the conditions prescribed in these Regulations and is equipped with a qualified crew and shall ensure that the ship is in a state of airworthiness.

The waterway transport operator shall carry passengers or goods in accordance with the authorized passenger capacity or the carrying capacity of the ship, and shall not overload or use the cargo ship to carry passengers.

Article 19 Waterway transport operators shall provide safe, convenient and high quality services for passengers and shippers in accordance with the provisions of laws, administrative regulations and the provisions of the competent department of transport of the State Council on waterway passenger and cargo transport, quality standards and contracts. Passenger, cargo transport safety.

The passenger operator of the waterway passenger transport business shall insure the carrier's liability insurance for the passenger ship or obtain the corresponding financial guarantee.

Article 20 Water transport operators shall transport dangerous goods in accordance with the provisions of the laws and administrative regulations and the provisions of the competent department of transportation and transportation of the State Council on the transport of dangerous goods, and shall use the ship with the certificate of fitness for obtaining dangerous goods in accordance with the prescribed safety technical regulations. Carry and transport, to ensure the safety of transport.

Article 21 The passenger liner operator of the passenger liner shall sail within 60 days from the date of obtaining the operation license of the liner service and publish the information on the ship, class,

The passenger liner should be operated in accordance with the published class and shift; the class, the class and the tariff shall be announced to the public 15 days ago. If the part or all of the liner service is to be stopped, it shall be published to the public 30 days ago and reported to the original licensing authority Filing.

Article 22 The operator of the cargo liner transportation business shall announce the ships used in the liner shipping route and the class, class and tariffs.

The carriage of goods should be carried out in accordance with the published class, the frequency of the shift, the shift class, the frequency, the tariff or the part or all of the liner service shall be stopped.

Article 23 Waterway transport operators shall, in accordance with the relevant laws and administrative regulations and the relevant provisions of the State, give priority to the delivery of the materials, equipment, tools, emergency rescue personnel and personnel who are in danger of dealing with emergencies, , An important military transport.

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When the emergency transportation needs of the people's livelihood are related, the competent department of transportation under the State Council may, in accordance with the arrangements of the State Council, require the water transport operators to give priority to the transportation of materials that need to be transported urgently. The waterway transport operator shall promptly transport the goods in accordance with the requirements.

Article 24 Waterway transport operators shall submit statistical information in accordance with the provisions of statistical laws and administrative regulations.

Chapter IV Waterway Auxiliary Services

Article 25 The owner or operator of a ship transporting ship may entrust a ship management business operator to provide services such as shipping and maintenance services for ships.

Article 26 In applying for the operation of the ship, the applicant shall meet the following conditions:

- (A) with the legal conditions of enterprises;
- (2) having a sound safety management system;
- (3) having a maritime and mechanic management personnel who are compatible with the capacity of the ship to which they are applying for management;
- (4) other conditions prescribed by laws and administrative regulations.

Article 27 The business of ship management shall be approved by the department responsible for the management of water transport by the local people's governments at or above the municipal level.

The applicant shall submit the application to the department as prescribed in the preceding paragraph and prove that the applicant has complied with the relevant materials stipulated in Article 26 of these Regulations.

The department receiving the application shall, within 30 working days from the date of acceptance of the application, make a decision to grant permission or disapproval. The license shall be issued to the competent department of communications under the State Council for the record of the business license of the ship management business. If the license is not granted, the applicant shall notify the applicant in writing and explain the reasons.

If the ship management business license is obtained, the business license of the ship management business shall be registered with the administrative department for industry and commerce according to law before it can operate the ship management business.

Article 28 Where a ship management business operator accepts the commission of a ship management service, it shall enter into a written contract with the client and record the contract with the local maritime administrative organ.

The ship management business operator shall, in accordance with the relevant provisions of the State and the contract, fulfill the obligation to manage the safety of ships and prevent pollution.

Article 29 A waterway transport operator may entrust a port operator, such as a ship agent, a waterway passenger transport agent, an operator of a waterway cargo transportation agency business, a port of entry and exit of a consignee, to enter into a contract of carriage, an agent, a cargo contract, and other Water transport agency business.

Article 30 The operator of the ship agent and the waterway passenger transport agency business shall, within 15 working days from the date of establishment of the enterprise, file with the municipal people's government at the municipal level for the management of the water transport management.

Article 31 The operator of the ship agent, waterway passenger transport agent and waterway freight forwarding agency shall be entrusted with the provision of agency services, and shall enter into a written contract with the principal, and shall not act as agent in accordance with the relevant provisions of the State and the contract, Shall not be for the law did not get the water transport business license or beyond the scope of the operator for the agency business.

Article 32 The provisions of Article 12 and Article 17 of these Regulations shall apply to the operators of the ship management business. The provisions of Article 11 and Article 24 of these Regulations shall apply to the business activities of ship management, ship agency, waterway passenger transport agent and waterway cargo transportation agency business.
The competent department of communications under the State Council shall, in accordance with the provisions of these Regulations, formulate specific measures for the management of water transport auxiliary services.

Chapter 5 Legal Liability

Article 33 Where the water transport business or the domestic ship management business is operated without permission or operated beyond the scope of the license, the department responsible for the management of water transport shall order it to cease to operate and confiscate the illegal gains and bear the illegal income more than 1 times to 5 times Of the fine; no illegal income or illegal income of less than 30,000 yuan, at 30,000 yuan more than 150,000 yuan fine.

Article 34 Where a waterway transport operator uses a ship that has not obtained the ship's operating documents to engage in water transport, the department responsible for the management of waterway transportation shall order the ship to cease operation and confiscate the illegal gains and shall, at least one time more than 5 times the illegal income Fined; no illegal income or illegal income of less than 20,000 yuan, at 20,000 yuan more than 100,000 yuan fine.

If the ship engaged in the operation of the water transport does not carry the ship's operating documents with the ship, it shall be ordered to make corrections and may impose a fine of not more than 1,000 yuan.

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Article 35 A waterway transport operator shall use a foreign vessel to operate the waterway transportation business without the permission of the competent department of communications under the State Council or beyond the scope of the license, or the foreign enterprise, other economic organizations and individuals may operate or rent a Chinese ship or class The department shall be ordered to cease to operate and confiscate the illegal gains and impose a fine of not less than one time but not more than five times the illegal income; if there is no illegal income or the illegal income is less than 200,000 yuan, the department shall be responsible for the operation of the water transport business. More than 10,000 yuan a fine of less than 1 million yuan.

Article 36 Where an administrative license under these Regulations is obtained by improper means such as deception or bribery, the original license authority shall revoke the license and impose a fine of not less than 20,000 yuan but not more than 200,000 yuan; if there is any illegal income, the illegal gains shall be confiscated; The department in charge of transportation under the State Council or the department responsible for the management of water transport shall not accept the application for the license within 3 years from the date of revocation of the license.

Article 37 Whoever rents, lends or resells an administrative license under these Regulations or otherwise illegally transfers the administrative license as prescribed in these Regulations shall be ordered by the department responsible for the administration of water transport to make corrections and confiscate the illegal gains and return the illegal gains Whichever is less than 5 times the fine; no illegal income or illegal income of less than 30,000 yuan, a fine of 30,000 yuan to 150,000 yuan; the circumstances are serious, the original licensing authority revoked the corresponding license.

Falsification, alteration, alteration of the administrative license documents prescribed in these Regulations shall be fined not less than 30,000 yuan but not more than 150,000 yuan for the confiscation of alteration, alteration or alteration of the permit in the department responsible for the administration of water transport; Confiscate the illegal gains.

Article 38 Where a waterway transport operator has any of the following circumstances, the maritime administrative organ shall punish it according to law:

- (A) not in accordance with the provisions of the crew or not to make the ship in the airworthiness;
- (2) Beyond the ship's designated passenger quota or the authorized load to carry passengers or cargo;
- (C) the use of cargo ships to carry passengers;
- (4) transporting dangerous goods using ships that do not have a certificate of fitness for dangerous goods.

Article 39 Where the operator of the waterway passenger transport business fails to insure the carrier's liability insurance or obtain the corresponding financial guarantee for the passenger ship operated by it, the department responsible for the management of the waterway transportation shall order it to make corrections within a time limit of 20,000 yuan or more and

100,000 yuan The following shall be fine; if the time limit is not corrected, the original licensee shall revoke the ship operating license of the passenger ship.

Article 40 If the operator of the liner transport business does not advance the announcement of the ship, class, shift and tariff or its change information to the public in advance, the department responsible for the management of water transport shall order it to make corrections, and shall not be more than 2,000 yuan but not more than 20,000 yuan fine.

Article 41 Where a passenger liner operator of a passenger liner has not made a flight within 60 days from the date of obtaining the business license of the liner service, the department responsible for the management of waterway transportation shall order it to make corrections. If it refuses to make corrections, the original license authority shall revoke the business license.

Article 42 After the license has been obtained by the operator of the waterway transport and ship management business, the department that is in charge of the management of the waterway transport shall order it to rectify it within a prescribed time limit. If the rectification is still within the prescribed time limit, The original licensing authority revokes its business license.

Article 43 State staff members who are responsible for the management of waterway transport shall abstain from exercising their duties, neglect their duties or practice favoritism in the management of waterway transport and fail to perform their duties according to law.

Article 44 Whoever, in violation of the provisions of these Regulations, constitutes a violation of public security administration shall be given a law and order administration punishment according to law; if a crime is constituted, the criminal responsibility shall be investigated according to law.

Chapter VI Supplementary Provisions

Article 45 The management methods for passenger ships of less than 12 persons and the management methods for the transport of ferry vessels in townships and towns shall be formulated separately by the people's governments of provinces, autonomous regions and municipalities directly under the Central Government.

Article 46 These Regulations shall enter into force as of January 1, 2013. On May 12, 1987, the Regulations of the People's Republic of China on the Administration of Waterway Transportation promulgated by the State Council were abolished at the same time.


Translation by Tianjin Tianwai Translation Limited Company

WJD-013

天津市万金达商贸有限公司

WAN JIN DA (TIAN JIN) COMMERCE TRADE CO., LTD.
8 DA SI TOWN XIQING DIST. TIANJIN CHINA 300382

美国 Bridgewater Landing Inc (简称 B 公司) 委托天津市万金达商贸有限公司调查关于提单 MOLU26005510205 和 MOLU11026857343。我们向天津新港海关发出询问函和天津出入境检验检疫局发出询问, 查询进口和出口的详细情况。

查询情况如下:

MOLU26005510205 我们查询天津新港海关和天津商检, 没有货物不合格检验证明。此票货物已经被海关拍卖, B 公司提供的图片 MOL-026, 经核实是天津新港海关进出口货物验放中心服务大厅。经核实已经开箱, 货物已经拍卖在天津新港海关。海关没有显示退运这个提单的货物。中国海关法 117 条规定直接退运货物(原箱和原铅封)在货物下船之后的 60 天内可申请, 在提单没有报关的情况下可办理退运申请。如果超过 60 天之后不办理, 海关立即拍卖。如有疑问请查询天津新港海关。

MOLU11026857343 我们查询天津新港海关和天津出入境检验检疫局, 没有任何出口的凭据, 海关的系统没有这个提单下的货物出口报关, 天津商检也没有任何这票货物的出口检验信息。

我们又发了查询邮件到香港 (MOL) 和打电话到香港 MOL 去查询。香港 MOL 的经理助理 RAYSON CHANG 回复说没有这个提单在系统里。在电话里回复的是从没有在系统里生成这个提单。

我们再次发出查询到天津新港海关, 天津新港海关给予明确的回复: 1 这张提单 MOLU11026857343 是伪造的, 根据中华人民共和国国务院令 625 号的第二章第十一条 外国的企业、其他经济组织和个人不得经营水路运输业务, 也不得以租用中国籍船舶或者舱位等方式变相经营水路运输业务在中国国内包括香港和澳门。2 中国天津海关还指出: MOLU11026857343 提单如果运货物从天津到香港 意味着商船三井 (MOL) 严重的违反了中国的海运法律, 天津新港海关要求 B 公司出具证据, 天津新港海关以涉嫌违反中国海运法律和协助发货人走私货物到香港追究商船三井 (MOL) 的法律责任, 按照根据中华人民共和国国务院令 625 号的 第五章第三十五条 法律责任处以大于 1 万元小于 100 万元的罚款, 同时把商船三井 (MOL) 和 提单 MOLU11026857343 上的发货人提交到天津海关缉私部门按走私货物处理。

天津市万金达商贸有限公司附上: 中华人民共和国国务院令 625 号 (中文和英文) 也可以在 www.gov.cn/flfg/2012-10/22/content_2248774.htm 查询

以上是我们受理委托的查询结果。

法定代表人: 万小川



TEL: 22-84979091 FAX: 22-84979092 Email: wanchang200661@sina.com

WJD-014

天津市万金达商贸有限公司

WAN JIN DA (TIAN JIN) COMMERCE TRADE CO., LTD.
8 DA SI TOWN XIQING DIST. TIANJIN CHINA 300382

United States Bridgewater Landing Inc (referred to as **B Company**) commissioned by Tianjin Wan Jin Da Commerce Trading Co., Ltd. investigate the bill of lading **MOLU26005510205** and **MOLU11026857343**. We issued a inquiry thru a letter to Tianjin Xingang Customs and Tianjin Entry-Exit Inspection and Quarantine Bureau (referred to as **TJCIQ**), inquire the details of import and export.

The query is as follows:

Regarding **MOLU26005510205**, We inquired with Tianjin Xingang Customs and **TJCIQ**, There is no proof of inspection of unqualified goods. This cargos has been auctioned off by Customs.

Picture # **MOL-026** provided by B company, verified by Tianjin Xingang Customs, it is authentic Tianjin Xingang Customs Import and Export cargo inspection center's Service Hall.

Verified by Tianjin Xingang Customs this container has been opened and cargos auctioned off in Tianjin Xingang.

The Tianjin Xingang Customs in their system could not find any records of container been returned to origin in associated with this bill of lading **MOLU26005510205**.

Article 117 of the Chinese Customs Law, provisions for the direct return of goods (with Original container and original seal intact)

Within 60 days after the goods are disembarked, In the case of there is no declaration in the bill of lading, shipping merchant can apply for the return of container.

IF more than 60 days without declarations, Customs has authority to auction off immediately. If you have any questions, please contact Tianjin Xingang Customs.

Regarding **MOLU11026857343**, we inquired with both Tianjin Xingang Customs and **TJCIQ**. There have no records of export. Tianjin Xingang Customs computer system does not have this bill of lading under the export declaration of goods, **TJCIQ** also did not have any export inspection information on this bill of lading.

We also sent inquiry via email to Hong Kong (**MOL**), and telephone inquiry to Hong Kong (**MOL**) according to Assistant Manager Rayson Chang's reply he can't located this bill of lading in the system, it never generated this bill of lading in the system.



TEL: 22-84979091 FAX: 22-84979092 Email: wanchang200661@sina.com

WJD-015

天津市万金达商贸有限公司

WAN JIN DA (TIAN JIN) COMMERCE TRADE CO., LTD.
8 DA SI TOWN XIQING DIST. TIANJIN CHINA 300382

We again issued another query to Tianjin Xingang Customs, Tianjin Xingang Customs gives a clear reply as follows:

1. This bill of lading **MOLU11026857343** is forged, according to the People's Republic of China State Council Decree No.625, Article 11 of Chapter 2, Foreign enterprises, consists of other economic organization and individuals not allowed to operate the waterways transport business, and not allowed disguising in the manner of renting Chinese ships or spaces in China, including Hong Kong and Macau.

2. China Tianjin Customs also pointed out, Bill of Lading **MOLU11026857343** if indeed this container was shipped from Tianjin to Hong Kong means (MOL) is in serious violation of China's Maritime Law. Tianjin Xingang Customs requested B company to provide evidences.

Tianjin Xingang Customs states the suspicion of violation of China's Maritime law to assist the shipper smuggling of goods to Hong Kong , they will pursue the legal liability of merchant shipping (MOL).

In accordance with Article 35 of Chapter 5 of the State Council Decree No. 625 of the People's Republic of China, the legal liability is imposed by a fine of more than \$10,000 to less than \$ 1 million.

At the same time the merchant shipping (MOL) and shipper on bill of lading **MOLU11026857343** will be submitted to the Tianjin Customs anti-smuggling department handles the smuggling of goods.

Tianjin City Wan Jin Da Trading Co., Ltd attachment: Decree No. 625 of the State Council of the People's Republic of China (Chinese and English)

You can also inquiry at www.gov.cn/flfg/2012-10/22/content_2248774.htm

The above is the result of our inquiry.

Legal Representative: Wan, Xiaochuan



TEL: 22-84979091 FAX: 22-84979092 Email: wanchang200661@sina.com

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